

Sarita Bai Manikpuri vs State Of Chhattisgarh on 8 September, 2023

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NAFR

HIGH COURT OF CHHATTISGARH, BILASPUR

CRMP No. 1977 of 2022

1. Sarita Bai Manikpuri W/o Daviddas Manikpuri Aged About 24 Years D/o Ghasidas Mahant, R/o As Per Fir And Final Report Village Nirtu Khalhepara, Tahsil Seepat, Thana Seepat, Pin 495006 (Complainant), District : Bilaspur, Chhattisgarh
2. Daviddas Manikpuri (Mahant) S/o Charandas Manikpuri Aged About 27 Years R/o As Per Fir And Final Report Village Korbi Ratanpur, Pin. 495442 (Accused No. 01), District : Bilaspur, Chhattisgarh
3. Seema Devi Manikpuri (Mahant) W/o Charan Das Manikpuri Aged About 42 Years (Shobha Devi Wrongly Written In Order Dated- 12-10-2022) R/o As Per Fir And Final Report Village Korbi Ratanpur, Pin 495442 (Accused No. 02), District : Bilaspur, Chhattisgarh
4. Charandas Manikpuri S/o Late Amolidas Aged About 56 Years R/o As Per Fir And Final Report Village Korbi Ratanpur Pin 495442 (Accused No. 3), District : Bilaspur, Chhattisgarh
5. Charmin Bai Manikpuri (Mahant) W/o Bandudas Aged About 70 Years R/o As Per Fir And Final Report Village Korbi Ratanpur (Kanai Seepat Written In Final Report), Pin 495442 (Accused No. 04), District : Bilaspur, Chhattisgarh
6. Swami Das Manikpuri (Mahant) S/o Charandas Manikpuri Aged About 30 Years R/o As Per Fir And Final Report Village Korbi Ratanpur Pin. 495442 (Accused No. 05), District : Bilaspur, Chhattisgarh
7. Anita Bai Manikpuri (Mahant) W/o Swami Das Manikpuri Aged About 25 Years R/o As Per Fir And Final Report Village Korbi Ratanpur Pin. 495442 (Accused No. 06), District : Bilaspur, Chhattisgarh

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Versus

1. State Of Chhattisgarh Through The S. H. O. Mahila Thana Bilaspur, Tahsil And District- Bilaspur Pin. 495001, District : Bilaspur, Chhattisgarh

2. Superintendent Of Police Bilaspur Tahsil And District- Bilaspur Pin 495001, District : Bilaspur, Chhattisgarh

--- Respondents

(Cause Title is taken from Case Information System) For Petitioners : Mr. Vijay Deshmukh, Advocate For State/ Respondents : Mr. Ajay Kumrani, P.L. Hon'ble Shri Justice Rakesh Mohan Pandey Order on Board 08.09.2023

1) The petitioners have preferred the instant petition for quashment of FIR dated 15.7.2019 bearing Crime No.26 of 2019, charge-sheet and the proceedings of Criminal Case No.3269 of 2019 pending before the Judicial Magistrate First Class, Bilaspur, District-Bilaspur (CG) registered against the petitioners for the offence punishable under Section 498A read with Section 34 of the Indian Penal Code (for short, the IPC) and for setting aside the order dated 12.10.2022 passed by the Sixth Additional Sessions Judge, Bilaspur in Criminal Revision No. 84 of 2021.

2) The facts of the present case are that complainant/ petitioner No.1 Sarita Bai Manikpuri is the wife of petitioner No.2 - Deviddas Manikpur and petitioners No.3 to 7 are in-laws of petitioner No.1. The marriage between petitioner No.1 and petitioner No.2 was solemnized on 24.4.2018 at village Nirtu, Seepat, District Bilaspur and there is no child out of their wedlock. The allegation is that after few months of marriage, petitioners No.2 to 7 assaulted petitioner No.1 on demand of dowry. Thereafter, petitioner No.1 lodged an FIR against petitioners No.2 to 7 under Section 498A read with Section 34 of the Indian Penal Code and the proceedings are pending before the Court of learned Judicial Magistrate First Class, Bilaspur, Chhattisgarh bearing Criminal Case No. 3296 of 2019 (State of Chhattisgarh vs. Devid Das Manikpuri and Ors.). The petitioners moved an application dated 16.8.2022 under Section 320(1) read with Section 482 of Cr.P.C. on the basis of amicable settlement for compounding the offence of Section 498A read with Section 34 of IPC registered on the basis of the complaint lodged by petitioner No.1 herein against petitioners No.2 to 7. In pursuance of the above-mentioned incidents, it is also pertinent to mention here that petitioner No.1 and petitioner No.2 have filed a Civil Suit No. 531A of 2022 dated 27.6.2022 before the Family Court, Bilaspur under Section 13(B) of Hindu Marriage Act, 1955 for obtaining a decree of divorce by mutual consent.

3) Learned counsel appearing for the petitioners would submit that dispute between petitioner No.1 and petitioners No.2 to 7 has already been settled. He further submits that the statement of the petitioners regarding the settlement of dispute has been recorded before the learned Registrar (Judicial) of this Court on 31.08.2023 wherein they have categorically stated that they have settled the dispute and arrived at a settlement without any coercion, greed, or pressure. He would further submit that as the petitioners have settled their dispute, therefore, petitioner No.1 does not want to pursue this criminal case furthermore against petitioners No.2 to 7 and thus, the order for quashment of FIR in Crime No.26 of 2019, final report bearing No.27 of 2019 dated 3.8.2019 and the proceedings of Criminal Case No.3269 of 2019 pending before the Judicial Magistrate First Class, Bilaspur, District-Bilaspur (CG) may be passed.

4) From documents, it appears that an FIR was registered against petitioners No.2 to 7 for commission of offence punishable under Section 498A read with 34 of the IPC.

5) Vide order dated 31.8.2023, the petitioners were directed to appear before the Registrar (Judicial) of the Registry of this Court on 31.8.2023 i.e. on the same day for recording their statements. In pursuance of the above order, the petitioners appeared before the Registrar (Judicial) on 31.8.2023 and their statements were recorded, where they have expressed their desire to enter into compromise without any coercion, greed, or pressure.

6) I have heard learned counsel for the parties and perused the documents.

7) The Hon'ble Supreme Court has held in the matter of 'Ramgopal And Another Vs State of Madhya Pradesh, reported in 2021 SCC Online SC 834' and 'Narinder Singh and Others Vs. State of Punjab and Another reported in 2014(6) SCC 466', that the matters which can be categorized as personal in nature or in the matter in which the nature of injuries do not exhibit mental depravity or commission of an offence of such a serious nature that quashing of which would override public interest, the Court can quash the FIR in view of the settlement arrived at amongst the parties.

8) In view of aforementioned facts and circumstances of the case as well as the law rendered by the Hon'ble Supreme Court in the matter of Ramgopal (supra) and Narinder Singh (supra), and further considering the fact that the petitioners have settled their dispute which is evident from the statement dated 31.08.2023 recorded before the Registrar (Judicial) of the Registry of this Court, the FIR dated 15.07.2019 bearing Crime No.26 of 2019, charge-sheet/ final report bearing No. 27 of 2019 dated 3.8.2019 and the proceedings of Criminal Case No.3296/2019 pending before the Judicial Magistrate First Class, Bilaspur, District-Bilaspur (CG) are hereby quashed. Consequently, the order dated 12.10.2022 passed in Criminal Revision 84 of 2021 (Chanrandas Manikpuri and Others vs. State of Chhattisgarh) by the learned Sixth Additional Sessions Judge, Bilaspur is hereby set-aside.

9) Accordingly, the petition is allowed to the extent indicated hereinabove.

Sd/-

(Rakesh Mohan Pandey) Judge Nimmi